

OFFICE OF THE SECRETARY

PO Box 942883
Sacramento, CA 94283-0001



April 3, 2019

The Honorable Daniel J. Buckley
Judge of the Superior Court
County of Los Angeles
111 North Hill Street, Dept. PJ
Los Angeles, CA 90012

Re: Agustin Diaz
CDCR No: K42849
Case No: SA023829-02
Date of Sentence: February 6, 1997

Dear Honorable Daniel J. Buckley:

The purpose of this letter is to provide the court with the authority to resentence inmate Agustin Diaz, pursuant to Penal Code (PC) Section 1170, Subdivision (d) (1). PC Section 1170, Subdivision (d) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

Since his arrival to CDCR on March 4, 1997, inmate Diaz has only received one Rules Violation Report during his incarceration: July 1, 2003, at California State Prison, Solano, for Disrespect, an Administrative Offense. Inmate Diaz has taken advantage of opportunities to successfully transition back into society. Inmate Diaz has received multiple Laudatory Chrono's and has also been participating in various voluntary Self-Help Programs and Self-Help Workshops such as: Restorative Justice; PACE Life Skills; Alcoholics Anonymous; Narcotics Anonymous and Partnership for Re-Entry. In addition, inmate Diaz has been voluntarily continuing his education through Adult Basic Education. Inmate Diaz has submitted to a total of three random urinalysis tests during this period of incarceration, of which all have returned with findings of negative results.

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Having reviewed the enclosed documentation it appears that inmate Diaz's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,


RALPH M. DIAZ
Secretary (A)

Enclosures:

Abstract of Judgment
Minute Order
Court Information-Charging Documents
Cumulative Case Summary

cc: Los Angeles County District Attorney's Office
Los Angeles County Public Defender's Office